

**IN THE COURT OF THE XXIII ADDITIONAL CITY CIVIL AND SESSIONS
JUDGE
(COMMERCIAL COURT), BENGALURU
COMMERCIAL SUIT NO. 214 OF 2026**

Asterix Precision Castings Private Limited

... *PLAINTIFF*

VERSUS

Vindhya Fabtech Industries Private Limited

... *DEFENDANT*

WRITTEN STATEMENT ON BEHALF OF THE DEFENDANT

1. The Defendant admits the execution of the Master Supply Agreement dated 05.03.2025 and the issuance of Purchase Order No. VFI/PO/2025/0118 dated 18.03.2025.
2. The Defendant admits receipt of all four tranches of supply totalling 4200 units as pleaded in paragraph 6 of the Plaint.
3. The Defendant admits having made part-payments of Rs. 15,00,000 and Rs. 12,50,000 as pleaded, but denies that the entire remaining balance is payable without adjustment.
4. The Defendant states that the goods supplied under Tranche 2 exhibited a dimensional variance in approximately 40 units, for which a quality claim is under internal assessment and a credit adjustment is contended to be due, though the exact quantum thereof is not yet quantified by the Defendant.
5. The Defendant denies that interest is payable at the rate or from the date claimed and contends that any interest liability, if at all, ought to run only from the date of this suit.
6. Denied. The Defendant states that...
7. The Defendant states that it placed Purchase Order No. VFI/PO/2025/0118 in good faith on the strength of the Plaintiff's representations regarding quality and timely delivery, and has at all times acted in accordance with the terms of the Master Supply Agreement save as specifically pleaded herein.
8. The Defendant states that upon receipt of Tranche 2 under Goods Receipt Note VFI/GRN/2025/126, its quality control department flagged a dimensional variance in a sample lot, but the shipment was nonetheless accepted into stores pending a formal quality review, which review remains under internal process.
9. The Defendant denies that time was of the essence of the Agreement in the manner pleaded and states that minor variances in the delivery schedule, if any, were accepted without demur by the Plaintiff and cannot now found a claim for aggravated interest.
10. The Defendant states that it has at all times been ready and willing to reconcile the account on a correct basis and denies that it has acted in wilful default of its payment obligations under the Agreement.
11. The Defendant denies paragraph 9 of the Plaint and states that its reply dated 29.12.2025 to the demand notice fairly set out its position on quantum, including the disputed quality claim, and did not amount to an admission of the amount claimed.
12. The Defendant denies each and every other allegation made in the Plaint not specifically dealt with above as if the same were set out here and denied seriatim.

13. In the premises, it is respectfully prayed that this Hon'ble Court may be pleased to allow such adjustment towards the disputed quality claim as may be just, and decree the suit, if at all, only for the balance amount found due after such adjustment, with no order as to interest prior to the date of suit.

VERIFICATION

I, Suresh Palaniappan, Director of the Defendant, do hereby verify that the contents of paragraphs 1 to 13 above are true and correct to my knowledge and belief derived from the records of the Defendant company.

Verified at Bengaluru on this the 24th day of April, 2026.

For Vindhya Fabtech Industries Private Limited
(Suresh Palaniappan)

Director

Mr. Rohit Bhandari, Advocate for the Defendant
Enrolment No. KAR/1972/2011